

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 05/29/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 7	23CV416938	Patel et al. (Cross Complainants) v. Hoge, Fenton, Jones & Appel, Inc. (Cross-Defendant)	MOTION TO CONTINUE TRIAL Due to a combination of outstanding discovery (Line 2) and clerical calendaring error regarding pending Motion for Summary Judgment, the motion to continue trial is GRANTED. Motion for Summary Judgment will remain as previously set on August 12, 2026. Jury trial will be continued to 4/12/2027. All discovery and motion cut-off dates, settlement conference dates, and trial assignment dates shall correspond to the April 12, 2027 trial date. Cross-Defendant to prepare final proposed order accompanied by necessary Form EFS-020 within 7 days of the hearing.
9:01			
Line 1	21CV376210	Ku et al v Herchen et al	ORDER OF EXAMINATION Continued from 3/18/26
Line 2	25CV477044	Rocha Zamora v Topgolf Callaway et al.	COMPROMISE OF MINOR'S CLAIM - for Jayson Avalos Rocha If no notice of matter being contested by 4:00 p.m on 5/28/2026, the Court will sign the e-filed proposed order.
Line 3			COMPROMISE OF MINOR'S CLAIM - for Baltazar Navarrete Cardenas If no notice of matter being contested by 4:00 p.m on 5/28/2026, the Court will sign the e-filed proposed order.

Calendar Line 1

Case Name: *Advoque Safeguard, LLC et al. v. Sanctuary Systems, LLC et al*

Case No.: 21CV392455

Cross-Defendants Advoque Safeguard, LLC and Ciasom, LLC's motion for summary adjudication.

Alleged Facts

This is an action for fraud and conspiracy as alleged by Cross-Complainant Sanctuary Systems, LLC ("Sanctuary") against Cross-Defendants Advoque Safeguard, LLC ("ASG") and Ciasom, LLC ("Ciasom"; collectively, "Cross-Defendants").

According to the first amended cross-complaint ("FAXC"), Cross-Defendants misrepresented to Sanctuary that they had the knowledge, capacity, and ability to produce millions of masks that would be certified as N95 respirators by the Center for Disease Control's National Institute for Occupational Safety and Health ("NIOSH"). (FAXC, p. 2:4-7.) Cross-Defendants had no concrete plan for manufacturing NIOSH-compliant N95 respirators and concealed this from Sanctuary to facilitate the monopolization of Sanctuary's supply. (*Id.* at p. 2:7-12.)

In March 2020, Cross-Defendants and Sanctuary entered into various purchase agreements for the supply of filtration materials from Sanctuary to Cross-Defendants. (FAXC, ¶ 32.) Cross-Defendants began producing the masks in late April 2020 but did not have the ability to test their masks in-house. (*Id.* at ¶¶ 43-44.) Instead, Cross-Defendants contracted with Nelson Laboratories ("Nelson") and ICS Laboratories, LLC ("ICS") to test and confirm the masks would perform as N95 respirators. (*Id.* at ¶¶ 44-45.) On April 30, 2020, unbeknownst to Sanctuary, Cross-Defendants began to ship out the masks without having received the test results from Nelson or ICS or having received the Center for Disease Control's National Institute for Occupational Safety and Health's ("NIOSH") approval. (*Id.* at ¶¶ 46-47.) Cross-Defendants also concealed: (1) the failed tests results, quality control issues, and customer complaints associated with Cross-Defendants' masks made with Sanctuary's materials; (2) that Cross-Defendants made material misrepresentations to NIOSH to receive temporary certification; (3) that Cross-Defendants marketed and distributed masks falsely labeled as NIOSH-compliant; and (4) that Cross-Defendants transferred funds out of their accounts in a manner that impaired their financial stability and legal accountability to Sanctuary and to customers. (*Id.* at ¶¶ 130-133.) Cross-Defendants concealed these material facts to induce Sanctuary to continue supplying filtration materials. (*Id.* at ¶ 135.) Cross-Defendants formed a conspiracy to commit fraud by entering into written agreements whereby Ciasom would manufacture ASG-branded masks and ASG would distribute the same. (*Id.* at ¶¶ 141-142.) In October 2024, ASG and its agents, Jason Azevedo, Paul Shrater, and Andrew Stack were criminally charged in the United States District Court for the District of Massachusetts, and Sanctuary became entangled in the criminal investigation leading up to the charges. (*Id.* at ¶¶ 123, 134.)

On March 5, 2026, Cross-Defendants filed the instant motion for summary adjudication of the first cause of action for fraud and deceit by concealment and the second cause of action for conspiracy. Sanctuary filed a timely opposition, and Cross-Defendants filed a timely reply.